STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) ss.
CITY OF BURBANK)

I, Kimberley Clark, Elections Official/City Clerk of the City of Burbank, County of Los Angeles, State of California, hereby certify that I have compared the foregoing copy with the original Resolution No. 26-29,726 A RESOLUTION OF THE COUNCIL OF THE CITY OF BURBANK CALLING FOR THE PLACEMENT OF A MEASURE ON THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION BALLOT FOR THE SUBMISSION TO QUALIFIED VOTERS A PROPOSED ORDINANCE THAT WOULD CHANGE THE CITY'S ELECTORAL SYSTEM FROM AT-LARGE TO BY-DISTRICT ELECTIONS WITH RESPECT TO ELECTING CITY COUNCIL MEMBERS, ESTABLISHING DISTRICT BOUNDARIES BY ADOPTING MAP 130, AND SCHEDULING ELECTIONS WITHIN THE DISTRICTS; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND SETTING RULES AND DEADLINES FOR ARGUMENTS AND REBUTTALS FOR AND AGAINST THE MEASURE, now on file in the Office of the City Clerk of the City of Burbank; that the same contains a full, true and correct transcript therefrom and of the whole thereof.

Witness my hand and the seal of said City of Burbank, this 6th day of August, 2026.

Kimberley Clark

KIMBERLEY CLARK
ELECTIONS OFFICIAL/BURBANK CITY CLERK

(SEAL)

RESOLUTION NO. 26-29,726

A RESOLUTION OF THE COUNCIL OF THE CITY OF BURBANK CALLING FOR THE PLACEMENT OF A MEASURE ON THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION BALLOT FOR THE SUBMISSION TO QUALIFIED VOTERS A PROPOSED ORDINANCE THAT WOULD CHANGE THE CITY'S ELECTORAL SYSTEM FROM AT-LARGE TO BY-DISTRICT ELECTIONS WITH RESPECT TO ELECTING CITY COUNCIL MEMBERS, ESTABLISHING DISTRICT BOUNDARIES BY ADOPTING MAP 130, AND SCHEDULING ELECTIONS WITHIN THE DISTRICTS; DIRECTING THE CITY ATTORNEY TO PREPARE AN IMPARTIAL ANALYSIS; AND SETTING RULES AND DEADLINES FOR ARGUMENTS AND REBUTTALS FOR AND AGAINST THE MEASURE

THE COUNCIL OF THE CITY OF BURBANK FINDS:

A. On August 23, 2022, the City received a notice of a potential violation of the California Voting Rights Act (CVRA) from a potential plaintiff (Plaintiff) on behalf of a Latino voter in the City of Burbank. (Elec. Code §§14027-14032.)

B. On January 24, 2023, Council adopted a Resolution of Intent to Initiate a Transition to District Elections in accordance with Elections Code § 10010 and authorized staff to retain National Demographics Corporation (NDC) to guide the process.

C. Council held two pre-map public hearings on March 14, 2023, and April 11, 2023, with three community forums on March 30, April 6, and April 8.

D. Prior to the initial June 2 deadline for submission of draft districting maps, 26 draft maps were submitted with 14 submissions in the "Draw Your Neighborhood" tool.

E. On June 14, 2023, Council held its first public hearing to consider draft maps submitted by the June 2 deadline.

F. At Council's direction, the City hosted five additional community forums on June 15, 22 (one virtual and one live), 24 and 29 to allow constituents multiple opportunities to discuss and debate five "focus" maps selected by Council.

G. The City received 13 additional maps and one more "Draw Your Neighborhood" submission by the second July 7 deadline.

H. Council held a fourth public hearing July 18 at which it considered the additional submissions. At that hearing, Council directed NDC to create variations of draft Map 130.

I. Map 130 and the four variations created by NDC each included a proposed sequencing in which the districts depicted in the map would be up for election either in the presidential or in the gubernatorial election year.

J. Map 130 and its variations with corresponding sequencing proposals were posted on Burbank's redistricting website on July 28, 2023.

K. Council considered Map 130 and its variants at a public hearing August 23 but did not assign final sequencing of elections in the districts of Map 130 or any of its variations.

L. Rather, Council directed staff to return for future discussion following the outcome of the California Supreme Court decision in the *Pico Neighborhood Ass'n v. City of Santa Monica* case.

M. On August 24, 2023, the California Supreme Court issued its opinion in *Pico Neighborhood Ass'n v. City of Santa Monica* (2023) 15 Cal.5th 292.

N. Considering the Supreme Court's expansive discussion of alternative electoral systems as remedial options in a CVRA case, on October 3, 2023, the City Council unanimously declined to adopt a districting ordinance and directed staff to evaluate the availability and impact of cumulative voting in the City's existing at-large election system.

O. On October 3, 2023, by unanimous motion, Council directed staff to:

a. Contact the Los Angeles County Clerk regarding the feasibility of cumulative voting for residents and return with a first-step report on cumulative voting that addresses any expected impact on voter representation in Burbank.
b. Direct the Charter Review Committee to consider the size and composition of the City Council, consider various iterations of districts, the possibility of a separately elected Mayor, and a re-districting process.
c. Invite the Plaintiff to participate in future discussion to ensure any potential outcome address the concerns posed by the CVRA violation notice.

P. On October 19, 2023, the Plaintiff filed a lawsuit against the City alleging two causes of action, for violations of the CVRA and the Equal Protection Clause of the California Constitution (the second was subsequently dismissed with prejudice).

Q. On February 23, 2026, the City participated in court-ordered pretrial mediation which resulted in a settlement of the CVRA lawsuit.

R. The settlement agreement included a provision for placing a Charter amendment measure on the ballot permitting a change in the City's electoral system from its current at-large method, to a district-based method in which City Council members are required to be residents of their respective electoral districts and are nominated and elected by the residents of their respective electoral districts.

S. The settlement agreement also included a provision for placing an Ordinance on the ballot for voter approval, substantially in the form attached hereto as Exhibit A, to change the City's electoral system from at-large to by-district elections for City Council members, establishing district boundaries by adopting Map 130, and scheduling elections within the districts.

T. The settlement agreement reserved to Council full discretion to decide the sequencing of elections in the districts depicted in Map 130.

U. On June 30, 2026, the Council held a public hearing on sequencing of elections in the districts depicted in Map 130.

V. At the close of the public hearing, Council resolved that Districts 3 and 4 will appear on the ballot at the general municipal election in November 2028, with the remaining districts on the ballot at the general municipal election in November 2030.

W. Council also instructed staff to adjust the numbering on Map 130 so that even-numbered districts are on the ballot in the gubernatorial election year starting in 2028, and odd-numbered districts are on the ballot in the presidential election year starting in 2030.

X. Exhibit B to this ordinance reflects Map 130 with district numbers adjusted as instructed by Council so that Districts 2 (formerly District 3) and 4 are on the ballot in the gubernatorial election year starting in 2028, and Districts 1, 3 (formerly District 2) and 5 are on the ballot in the presidential election year starting in 2030.

Y. The proposed Measure is not a project under the California Environmental Quality Act (CEQA) pursuant to 14 CCR Section 15061(b)(3) because it can be seen with certainty that there is no possibility that the activity of placing this ordinance on the ballot for voter approval and implementation of the ordinance, if adopted, may have a significant effect on the environment. (See also CEQA Guidelines, Section 15378(b)(5).)

THE COUNCIL OF THE CITY OF BURBANK DOES ORDAIN AS FOLLOWS:

1. Recitals. The City Council hereby finds and determines that the forgoing recitals are true and correct and are incorporated herein by this reference and are made an operative part hereof.

2. Call for Placement of Measure on the November 3, 2026 Election Ballot. Pursuant to Elections Code Section 9255(b)(1), the City Council approves the

submittal to the qualified voters of the City of Burbank at the General Municipal Election to be held in the City of Burbank, California on Tuesday, the 3rd day of November, 2026, a measure that, if approved, would amend the City's Municipal Code to add Chapter 3 to Title 2 to change the City's electoral system for City Council elections from at-large to by-district elections (proposed Measure. This proposed Measure shall be designated by letter by the Los Angeles County Registrar of Voters.

3. **Ballot Language**. The ballot language for the proposed Measure shall be as follows:

BY-DISTRICT COUNCIL ELECTIONS MEASURE ___: Shall the Ordinance be adopted adding Chapter 3 to Title 2 of the Municipal Code changing the City's electoral system for City Council elections from at-large to by-district elections in the districts reflected in Map 130? **Supporters:** **Opponents:**	Yes _____	No _____

4. **Text of Measure**. The proposed Measure submitted to the voters is attached in Exhibit A to this Resolution, which is incorporated herein by reference. The City Council hereby approves the proposed ordinance, in the form thereof, and its submission to the voters of the City at the November 3, 2026 election. The full text of the proposed Measure shall be printed in the ballot materials and be available for public inspection in the City Clerk's office and on the City's website burbankca.gov.

5. **Publication of Measure**. The City Clerk is hereby directed to cause notice of the proposed Measure to be published once in a daily newspaper of general circulation in the City of Burbank, in accordance with Section 12111 of the California Elections Code and Burbank Municipal Code Section 2-3-119.

6. **Election and Canvass of Returns**. The returns of said election shall be canvassed and declared as provided by law, and if a majority of the votes cast at such election are in favor of such Measure, the Measure shall be approved.

7. **Authority for City Council or Members Thereof to File Argument**. Pursuant to Elections Code Section 9282(b), the City Council or a member or members of the City Council authorized by the City Council may file a written argument against the proposed Measure.

8. **Submission of Ballot Arguments**. Pursuant to California Elections Code Sections 9281 et seq., the deadline for submission of arguments to the City Clerk in favor of, and arguments against, the proposed Measure shall be August 14, 2026. Arguments in favor of or against the proposed Measure shall not exceed three hundred (300) words in length. Each argument shall be signed, filed with the City Clerk, and include the printed name(s) and signature(s) of the author(s) submitting the argument. If more than one argument for or against is received, the priorities established by Elections Code Section

9287 shall control. Section 9285 of the Elections Code shall apply to the election and shall control the submission of any rebuttal arguments for this proposed Measure. Rebuttal arguments must be submitted to the City Clerk no later than August 24, 2026, at 5:00 p.m.

9. City Attorney's Impartial Analysis. Pursuant to Elections Code Section 9280, the City Council hereby directs the City Clerk to transmit a copy of the proposed Measure to the City Attorney. The City Attorney shall prepare an impartial analysis of the proposed Measure in accordance with the California Elections Code.

10. Certification and Transmittal to the County. The City Clerk shall certify to the passage of this Resolution and shall file a certified copy of this Resolution with the Board of Supervisors and the Los Angeles County Registrar of Voters no later than August 7, 2026.

11. Implementation. The City Clerk and City Manager are authorized to take all actions necessary to effectuate the purposes of this Resolution and election. The City Clerk and City Attorney are authorized to make any typographical, clerical, and non-substantive corrections to this Resolution as may be deemed necessary by the Los Angeles County Registrar of Voters.

12. General Application of Election Law. In all particulars not recited in this Resolution, the election hereby called shall be as provided by state and local law for holding municipal elections in the City.

13. California Environmental Quality Act. The City Council hereby finds and determines that the proposed Measure relates to organizational or administrative activities of governments that will not result in direct or indirect physical changes in the environment and therefore is not a project within the meaning of the California Environmental Quality Act ("CEQA") and the State CEQA Guidelines, Section 15378(b)(5) and or is exempt pursuant to State CEQA Guidelines, Section 15061(b)(3).

14. **Effective Date**. The Resolution shall become effective upon its adoption.

PASSED and ADOPTED this 21st day of July, 2026.

Tamala Takahashi
Mayor

Approved as to Form:
Office of the City Attorney

Attest:

Kimberley Clark, City Clerk

By: _____
Jill Vander Borght
Chief Assistant City Attorney

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) ss.
CITY OF BURBANK)

I, Kimberley Clark, City Clerk of the City of Burbank, do hereby certify that the foregoing Resolution was duly and regularly passed and adopted by a vote of the Council of the City of Burbank at its regular meeting held on the 21st day of July, 2026, by the following vote:

AYES: Anthony, Perez, Rizzotti, Mullins, and Takahashi.

NOES: None.

ABSENT: None.

Kimberley Clark, City Clerk

City of Burbank

Map 130

Renumbered

